

EMPLOYMENT AGREEMENT BETWEEN BHARAT SYSTEMS PVT. LTD. AND DELTA ENTERPRISES LTD.

Between: **Bharat Systems Pvt. Ltd.** (Employer) and **Delta Enterprises Ltd.** (Employee)

Effective Date: 2024-02-07

Termination Date: 2022-09-30

Governing Law: the laws of India

1. Insurance

Bharat Systems Pvt. Ltd. shall, throughout the term of this Agreement, maintain at its own cost: (a) professional indemnity insurance of not less than Rs. 1,99,00,000 (Rupees One crore, ninety-nine lakh Only) per occurrence; (b) public liability insurance of not less than Rs. 1,99,00,000 (Rupees One crore, ninety-nine lakh Only) per occurrence; (c) employers' liability insurance as required by applicable law. Bharat Systems Pvt. Ltd. shall provide evidence of such insurance upon request.

2. Term

This Agreement shall commence on the Effective Date, 2024-02-07, and shall continue until 2022-09-30, unless earlier terminated in accordance with Clause 1. Upon expiry, both Parties shall fulfil all outstanding obligations within fifteen (15) days.

3. Termination

Either Party may terminate this Agreement by giving 15 days' written notice to the other Party. Either Party may terminate immediately upon written notice if the other Party commits a material breach that is not cured within thirty (30) days of receipt of written notice of such breach. Upon termination, Delta Enterprises Ltd. shall pay for all Services rendered up to the date of termination.

4. Non-Solicitation

During the term of this Agreement and for a period of twelve (12) months after its termination, neither Party shall directly or indirectly solicit or recruit any employee or contractor of the other Party who was involved in the performance of this Agreement, without prior written consent.

5. Confidentiality

Each Party agrees to keep confidential all Confidential Information received from the other Party. This obligation shall survive termination of this Agreement for a period of three (3) years. Disclosure is permitted only to employees or advisors who have a need to know and are bound by obligations at least as restrictive as those set forth herein.

6. Intellectual Property

All intellectual property rights in deliverables created specifically for Delta Enterprises Ltd. under this Agreement shall vest in Delta Enterprises Ltd. upon full payment. Pre-existing intellectual property of each Party shall remain with that Party. Bharat Systems Pvt. Ltd. grants Delta Enterprises Ltd. a non-exclusive, royalty-free licence to use any pre-existing intellectual property embedded in the deliverables solely for Delta Enterprises Ltd.'s internal business purposes.

7. Assignment

Neither Party may assign or transfer any of its rights or obligations under this Agreement without the prior written consent of the other Party. Any purported assignment in violation of this clause shall be null and void. Notwithstanding the foregoing, either Party may assign this Agreement to an affiliate without consent, provided it gives thirty (30) days' prior written notice.

8. Scope of Services

Bharat Systems Pvt. Ltd. shall provide to Delta Enterprises Ltd. the following services as detailed in Schedule A attached hereto: project management, technical implementation, quality assurance, documentation, and post-deployment support. Any modification to the scope of services must be agreed in writing by both Parties.

9. Definitions

In this Agreement, the following terms shall have the meanings ascribed to them herein. "Agreement" means this employment Agreement dated 2024-02-07 between Bharat Systems Pvt. Ltd. and Delta Enterprises Ltd.. "Services" means the services described in Clause 2. "Confidential Information" means any information disclosed by either Party that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information.

10. Data Protection

Each Party shall comply with all applicable data protection laws and regulations. Bharat Systems Pvt. Ltd. shall process personal data of Delta Enterprises Ltd.'s employees or customers only as necessary to perform the Services and strictly in accordance with Delta Enterprises Ltd.'s written instructions. Bharat Systems Pvt. Ltd. shall implement appropriate technical and organisational measures to protect such data.

11. Limitation of Liability

In no event shall either Party be liable to the other for any indirect, incidental, special, consequential, or punitive damages, including loss of profits or data, even if advised of the possibility thereof. The aggregate liability of either Party under this Agreement shall not exceed Rs. 1,99,00,000 (Rupees One crore, ninety-nine lakh Only). This limitation does not apply to obligations arising from Clause 6 or indemnification obligations.

12. Subcontracting

Bharat Systems Pvt. Ltd. shall not subcontract any material part of the Services without the prior written consent of Delta Enterprises Ltd.. Where subcontracting is permitted, Bharat Systems Pvt. Ltd. shall remain fully responsible for the performance of the subcontractor and shall ensure the subcontractor is bound by obligations equivalent to those in Clause 11 and Clause 11.

13. Dispute Resolution

Any dispute arising out of or in connection with this Agreement shall first be submitted to senior management of both Parties for resolution within thirty (30) days. If unresolved, disputes shall be referred to binding arbitration under the Arbitration and Conciliation Act, 1996. The seat of arbitration shall be Mumbai. The award shall be final and binding.

14. Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of India. Subject to Clause 5, the courts of Mumbai shall have exclusive jurisdiction over any dispute arising out of or relating to this Agreement.

15. Entire Agreement

This Agreement, together with all Schedules and Exhibits attached hereto, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior negotiations, representations, warranties, and understandings of any kind, whether written or oral.

IN WITNESS WHEREOF

Employer

Bharat Systems Pvt. Ltd.

Signature: _____

Name: _____

Title: _____

Date: _____

Employee

Delta Enterprises Ltd.

Signature: _____

Name: _____

Title: _____

Date: _____